



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Raab v Maltezo, 2025 ONLTB 64063

Date: 2025-12-17

File Number: LTB-L-082896-23

In the matter of: 1, 79 JOYCE ST
ST. THOMAS ON N5P 3M3

Between: Joern Raab Landlord

and

Steven Maltezo
Jodi Maltezo Tenants

Joern Raab (the 'Landlord') applied for an order to terminate the tenancy and evict Steven Maltezo and Jodi Maltezo (the 'Tenants') because the Landlord in good faith requires possession of the rental unit for the purpose of residential occupation for at least one year.

This application was heard in videoconference room 139 on August 14, 2025.

The Landlord, his representative Sandra Anderson, the Tenants and their counsel Elena Dempsey attended the hearing.

Determinations:

1. The Landlord applies to repossess the rental unit for use by his stepchild using an N12 notice of termination given under clause 48(1)(c) of the *Residential Tenancies Act, 2006* (the 'Act') that says his child is the intended occupant. His application must be dismissed because the Landlord's evidence proves on a balance of probabilities that the intended occupant is not his child within the meaning of the Act.
2. The intended occupant, K.N., is the child of the Landlord's former spouse. The Landlord led evidence intended to prove that he has demonstrated a settled intention to treat K.N. as

a child of his family and invited me to import into clause 48(1)(c) the definitions of “child” and “parent” found in subsection 1(1) of the *Family Law Act*.¹

3. I cannot accept the Landlord's interpretation because I find no authority for it when I look for the legislator's purpose in enacting section 48 of the Act. I find the proposed interpretation is not supportable on the text of the Act; it is contrary to the intent of the legislative regime viewed in context; and it would undermine the Act's objective of enhancing security of tenure for tenants who are not in breach of their tenancy agreements.

The “Modern Approach” to Statutory Interpretation

4. All legislation is deemed to be remedial and the interpreter must give it such fair, large and liberal construction as will best ensure the attainment of its objects according to the “modern approach” to statutory interpretation.²
5. The Court of Appeal has given guidance on interpreting the *Residential Tenancies Act, 2006*:

As stated by the Supreme Court “the words of an Act ... [are to] be read in their entire context and in their grammatical and ordinary sense harmoniously with the scheme of the Act, the object of the Act, and the intention of Parliament.” This court has described the [*Residential Tenancies Act, 2006*] as remedial legislation having a “tenant protection focus”. As remedial legislation, the Act must receive “such fair, large and liberal construction and interpretation as will best ensure the attainment of the object of the Act according to its true intent, meaning and spirit.”³

6. The task is to ascertain the intent of the legislative provision by examining its text, context and purpose.⁴

Text

7. The modern approach to statutory interpretation begins with a plain reading of the relevant statutory provisions. The Chief Justice of Canada has recently reiterated that the text of statutes remain the anchor of the interpretive exercise. It is the text that specifies, among other things, the means chosen by the legislator to achieve its purpose.⁵

¹ *Family Law Act*, R.S.O. 1990, c. F.3.

² *Legislation Act*, 2006, S.O. 2006, c. 21, Sched. F, subs. 64(1). *Rizzo & Rizzo Shoes Ltd. (Re)*, [1998] 1 S.C.R. 27, 1998 CanLII 837 at para. 21.

³ *Honsberger v. Grant Lake Forest Resources Ltd.*, 2019 ONCA 44 at para. 19 [citations omitted].

⁴ *Canada (Minister of Citizenship and Immigration) v. Vavilov*, 2019 SCC 65 at para. 118.

⁵ *Quebec (Commission des droits de la personne et des droits de la jeunesse) v. Directrice de la protection de la jeunesse du CISSS A*, 2024 SCC 43 at para. 24.

8. The Act does not define the words “parent” or “child”. Instead, the Legislature has comprehensively spoken on the subject in sections 6 to 13 of the *Children’s Law Reform Act*.⁶ Those who meet any of the legislated criteria are recognized “for all purposes of the law of Ontario” to be in a parent-child relationship.⁷
9. Also, those who adopt another person by court order granted under Part VIII of the *Child, Youth and Family Services Act, 2017* are recognized as being that person’s parent “for all purposes of law”.⁸
10. The Landlord agrees his relationship with K.N. does not meet any of these statutory criteria.

Context

11. The Supreme Court of Canada has reminded the interpreter that the grammatical and ordinary sense of the words employed in legislation is not determinative in understanding the true meaning of legislation and has rejected a literal approach to statutory interpretation:

Instead, [a legislative provision] must be read in its entire context. This inquiry involves examining the history of the provision at issue, its place in the overall scheme of the Act, the object of the Act itself, and Parliament’s intent both in enacting the Act as a whole, and in enacting the particular provision at issue.⁹

12. At common law, landlords could bring action for ejectment to remove a tenant at the end of the lease term. The common law rules governing the landlord-tenant relationship that had evolved in response to the needs and values of a feudal agrarian society and were considered unfit for residential tenancies in increasingly urbanized communities. So the Legislature adopted the recommendations of the Ontario Law Reform Commission and enacted Part IV of the *Landlord and Tenant Act* to abolish the undesirable common law rules of contract and property and replaced them by a regulated regime that included several tenant-protection features.¹⁰
13. In 1975, the Legislature amended the Part IV of the *Landlord and Tenant Act* again to provide for automatic renewal of residential tenancies at the end of term. The reforms also restricted a landlord’s right to terminate tenancies to permissible legislated grounds. Those grounds included a landlord’s right to repossess leased premises for “himself, his spouse

⁶ R.S.O. 1990, c. C.12.

⁷ *Children’s Law Reform Act*, subs. 4(4).

⁸ *Child, Youth and Family Services Act, 2017*, S.O. 2017, c. 14, Sched. 1, subs. 217(2).

⁹ *Chieu v. Canada (Minister of Citizenship and Immigration)*, 2002 SCC 3 at para. 34.

¹⁰ *Landlord Tenant Amendment Act*, SO 1968-69, c. 58.

or a child or parent of his or his spouse” on proper notice and proof of good faith.¹¹ The list of enumerated family members has remained unchanged throughout successive reforms and is reflected in subsection 48(1) of the current Act.

14. This historical observation informs the context of the provision at issue in this case. As a principle of statutory interpretation, the legislator is presumed to be aware of the legal, social and historical context in which it makes its laws. The Legislature is also presumed to know all that is necessary to produce rational and effective legislation. It is presumed to have knowledge of practical affairs and to understand the problems its legislation aims to address.¹²
15. Of particular relevance to this case, is the presumption that the legislator knows the law and its own statute book.¹³ Unless clearly stated, it expects the existing law to be applied unchanged:

When Parliament uses a term with a legal meaning, it intends the term to be given that meaning.

* * *

[A]bsent clear legislative intention to the contrary, a statute should not be interpreted as substantially changing the law.

* * *

This principle... reflects the common sense idea that Parliament is deemed to know the existing law and is unlikely to have intended any significant changes to it unless that intention is made clear.”¹³

16. Of course, the legislator is free to change the law but canons of statutory interpretation say that it must do that so expressly and clearly: “a Legislature is not presumed to depart from the general system of the law without expressing its intentions to do so with irresistible clearness, failing which the law remains undisturbed.”¹⁴
17. For example, the Legislature has expanded the definition of “spouse” in subsection 2(1) of the Act by including those who sign cohabitation agreements under section 53 of the *Family Law Act*. But it has left “child” and “parent” undefined in the Act. That relationship is comprehensively described in other legislation that applies for all purposes of the law of Ontario. If the Legislature wanted to incorporate the non-exhaustive definition of child and parent found in the *Family Law Act*, it would have done so using clear language.¹⁵ If any

¹¹ *The Landlord and Tenant Amendment Act 1975 (2nd Session)*, S.O. 1975, c. 13, s. 3 added section 103b to the *Landlord and Tenant Act*.

¹² Ruth Sullivan, *The Construction of Statutes*, 7th ed. (Toronto: LexisNexis, 2022), at s. 8.02. ¹³

R. v. Ulybel Enterprises Ltd., 2001 SCC 56 at para. 30.

¹³ *R. v. D.L.W.*, 2016 SCC 22 at paras 20-21:

¹⁴ *Goodyear Tire & Rubber Co. of Canada Ltd. v. T. Eaton Co. Ltd.*, 1956 CanLII 2 (SCC), [1956] S.C.R. 610, at 614.

¹⁵ *Maple Leaf Acres Members’ Association v. Ellig*, 2023 ONSC 3940 at para. 64.

other expanded definition was intended for the purposes of the Act, the Legislature would have said so explicitly.¹⁶

18. Similarly, if the legislator had wanted to give this Board the authority to terminate tenancies based on its assessment of a landlord's settled intentions towards the intended occupant, or even based on its appreciation of the propinquity of kinship between those persons, it would have said so with irresistible clearness; as for example the Legislature in Saskatchewan has done.¹⁷
19. The Landlord's proposed interpretation would expand the permissible list of intended occupants that has been in place since 1975. That would be a substantial change in the law. No such intention is revealed in the legislation viewed in its proper context.

Purpose

20. There will always be an obvious tension between landlords' desire to deal with their property as they please and tenants' desire to be free from no-fault evictions. Balancing those competing interests is one purpose of the Act. It provides substantial security of tenure for tenants in derogation of landlords' common law right to control the use to which they put their property. The Act continues this security of tenure until the tenant gives up the tenancy or the Board makes an order terminating the tenancy on specified grounds.
21. At the same time, the Legislature has made tenants' legitimate interest in keeping their homes subject to landlords' good faith intention to accommodate a defined group of family

members.¹⁸ The enumerated list of family members in section 48 is an expression of the Legislature's choice in balancing the competing interests of residential landlords and tenants.¹⁹

22. The Court of Appeal has reminded this Board that termination for landlords' own use is an exception to the general regime of the Act that protects tenants against no-fault evictions.²⁰ This Board and its predecessor tribunal have long recognized that the enumerated list of family members is deliberately narrow and admits of no extensions because that is the clear and unambiguous choice made by the elected Legislature.²¹
23. The Legislature has amended the *Children's Law Reform Act* to include those types of relationships that it wishes to recognize as a parent-child relationship. The Act trumps all

¹⁶ *Campbell v. Toronto Standard Condominium Corporation No. 2600*, 2024 ONCA 218 at para. 54.

¹⁷ In Saskatchewan, the list of permitted occupants includes "any other person who a hearing officer is satisfied has a close relationship with the individual and should be recognized for the purposes of this section." *Residential Tenancies Act, 2006*, SS 2006, c R-22.0001, subclause 60(1)(a)(viii).

¹⁸ *Salter v. Beljinac*, 2001 CanLII 40231 (Ont. Div. Ct.) at paras. 16-17.

¹⁹ *Tataw v. Minto Apartments LP*, 2023 ONSC 4238 (Div. Ct.) at para. 6.

²⁰ *Slapsys (1406393 Ontario Inc.) v. Abrams*, 2010 ONCA 676 at para. 12.

²¹ See for example *File No. TSL-06296*, [1999] O.R.H.T.D. No. 42 at para. 4; *File No. TSL-31405*, [2001] O.R.H.T.D. No. 177 at para. 3; *File No. TSL-43167-SA*, [2002] O.R.H.T.D. No. 162 at para. 9; *Lazar v. Bouzane*, [2002] O.R.H.T.D. No. 86 at para. 7.

conflicting legislation except the *Human Rights Code*: subsection 3(4). But there is no conflict between the Act and the parent-child relationships described in the *Children's Law Reform Act* and in the *Child, Youth and Family Services Act, 2017*.²² One can discern no intention in either the text, context or the purpose of the *Residential Tenancies Act, 2006* in general or of section 48 in particular to suggest to that it should be exempt from the general law that defines the parent-child relationship. Nor is there any signal the word child in clause 48(1)(c) should be interpreted differently than already provided for in legislation. The legislative scheme currently on the statute book is coherent and comprehensive. It can be applied harmoniously with the Act to respect the Legislature's choices in balancing the rights of landlords and tenants consonant with the guarantee of security of tenure that is a foundational objective of the Act.

24. I find the outcome of this case is clearly and unambiguously mandated by validly enacted legislation that defines the parent-child relationship. I see no ambiguity in the legislator's stated intention but if I had been faced with a true ambiguity as discussed in *Bell ExpressVu Limited Partnership v. Rex* (2022),²³ the law laid down by the Court of Appeal would compel the same outcome because the Board must prefer the interpretation that promotes the tenant-protection purpose of the Act.²⁴
25. In summary, the application must be dismissed because the Landlord gave notice of termination under clause 48(1)(c) of the Act to repossess the rental unit for use by a person who is not his child within the meaning of that provision. The Landlord's evidence that he too plans to live in the rental unit with K.N. is insufficient to cure the defect because that's not what his notice says; and notices of termination cannot be amended.
26. The Landlord waived the rent for July 2023 as compensation under section 48.1 and the Tenant confirmed it was still unpaid at the time of hearing. An order will issue under section 73.1 for return of the compensation.

It is ordered that:

1. The application is dismissed.
2. On or before December 28, 2025, the Tenants shall pay \$736.75 to the Landlord.
3. If the Tenants do not pay the Landlord the full amount owing on or before December 28, 2025, the Tenants will start to owe interest. This will be simple interest calculated from December 29, 2025 at 4.00% annually on the balance outstanding.

²² *All Families Are Equal Act (Parentage and Related Registrations Statute Law Amendment)*, 2016, S.O. 2016, c. 23 - Bill 28.

²³ 2002 SCC 42.

²⁴ *The Law Society of Upper Canada v. Chiarelli*, 2014 ONCA 391 at para. 72; *Price v. Turnbull's Grove Inc.*, 2007 ONCA 408 at para. 44.

December 17, 2025

Date Issued

Nersi Makki

Member, Landlord and Tenant Board

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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.